

		At bottom, there are cases holding that since there is no need to plead attorney's fees, there is even less need to strike them. (See <i>Snatchko v. Westfield LLC</i> (2010) 187 Cal.App.4th 469, 497 ["As there was no requirement they be pled at all, the trial court erred in striking [plaintiff's] prayer for attorney fees based on a failure to adequately plead their basis"]; <i>Chinn v. KMR Property Management</i> (2008) 166 Cal.App.4th 175, 194] "Attorney fees based on a contract provision do not need to be demanded in the complaint" because they are recoverable under section 1033.5, subdivision (a)(10) as an element of costs]; <i>Faton v. Ahmedo</i> (2015) 236 Cal.App.4th 1160, 1169 ["statutory attorney fees need not be pleaded and proved at trial and may properly be awarded after entry of judgment"]; see also Civ. Code, § 3532 ["The law neither does nor requires idle acts."]; <i>Camenisch v. Superior Court</i> (1996) 44 Cal.App.4th 1689, 1699 [trial court did not err in refusing to strike prayer for attorney's fees because court is "not required to strike the prayer before [the plaintiff] has had a full opportunity to determine, through discovery, whether a basis for recovery exist"].) Plaintiff shall give notice of all of the above.
106	Ramirez De Santos vs. S.K.B. Corporation 2024-01386790	Motion for Final Approval The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$2,250,000 class action and PAGA settlement. Upon submission of a revised proposed order, as explained below, the court will grant the motion as follows: \$6,000.00 for enhancement award to plaintiff; \$675,000.00 for attorneys' fees; \$ 18,210.20 for litigation costs; \$11,500.00 for settlement administration costs; and \$60,000.00 total PAGA penalties (\$39,000.00 to the LWDA). Plaintiff to submit a revised proposed order reflecting the above disbursements and all revisions identified below. Plaintiff must also submit a redline version showing all changes. 1. The left margin is missing a vertical line to the right of the line numbers on pages 2-6. ROA 125. 2. Add the ROA number for the settlement amendment. ROA 125 at 1. 3. Paragraph 20 should include the "Aggrieved Employees," and also state that any unclaimed funds will be sent in the name of the Class Member and/or Aggrieved Employee. The final accounting hearing is scheduled for June 24, 2027 at 2:00 p.m. in Department CX102. Plaintiff shall submit a final accounting report at least 16 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine

		the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. If all funds are not fully and finally disbursed prior to the filing deadline, including to the State Controller, plaintiff must request a continuance. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
107	Renteria vs. TTS Engineering Inc, 2024-01442426	Motion for an Order Approving PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that they fail to adequately address the previously identified issues. Accordingly, Plaintiff Edgardo Campos's Motion for Approval PAGA Settlement is CONTINUED to September 3, 2026 at 2:00 p.m. in Department CX102 in order to give Plaintiff's counsel an opportunity to address the issues identified below: 1. The Court's previous 4/9/2026 minute order issued at the 1st hearing on this motion stated: "According to counsel's declaration submitted in support of the instant motion, on 10/1/2025, Plaintiff Renteria settled his individual claims as part of a separate settlement agreement and dismissed his claims against Defendant. (ROA #34 [Counsel Decl.] at ¶ 7.) However, it appears from the Court's records that Plaintiff Renteria has not filed any request for dismissal. Plaintiff's counsel is ORDERED to file such request on behalf of Plaintiff Renteria forthwith." (ROA #44, emphasis original.) However, counsel still has not filed Plaintiff Renteria's request for dismissal. 2. Plaintiff's counsel did not provide proof of service of the Plaintiff's supplemental filings to the LWDA, including the Addendum to the Settlement Agreement. 3. Although counsel submitted an Addendum to the Settlement Agreement for the Court's review, the Addendum was executed only by the parties' counsel, not the parties themselves. A fully executed copy of the Addendum must be submitted. Plaintiff's counsel must also provide a revised notice/cover letter to aggrieved employees that will accompany the payment to them, with the following revisions: 1. The end date of the PAGA period, i.e., 9/14/2025 per counsel's supplemental declaration, should be set forth in the notice/cover letter.